

26SMCV02623 26SMCV02623

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TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

August

19, 2026

CASE NUMBER

26SMCV02623

MOTION

Motion

to Compel Arbitration

MOVING PARTY

Defendant

Hyundai Motor America

OPPOSING PARTIES

Plaintiff

Christina Page

MOTION

This case arises from allegations of Song-Beverly Act violations.

On August 6, 2026, Plaintiff Christina Page ("Plaintiff") filed suit against Defendant Hyundai Motor America ("Defendant" or "Hyundai"); alleging three causes of action for violations of the Song-Beverly Act.

Defendant Hyundai now moves to compel arbitration and to stay the action pending the outcome of the arbitration proceedings. Plaintiff opposes the motion and Hyundai replies.

REQUEST

FOR JUDICIAL NOTICE

Hyundai requests judicial notice of the following:

Exhibit 1: Plaintiff's Complaint filed on or about May 11, 2026 in this case.

Exhibit 2: Hyundai 2023 Owner's Handbook and Warranty Information, Publication NO. USAHYUNDAI-221025, Rev. 2022-02-06, publicly available at [https://www.hyundaiusa.com/content/dam/hyundai/us/com/pdf/assurance/Hyundai%20USA%20ALL%2023MY\(Combined\)221025.pdf](https://www.hyundaiusa.com/content/dam/hyundai/us/com/pdf/assurance/Hyundai%20USA%20ALL%2023MY(Combined)221025.pdf).

Judicial notice may be taken of records of any court in this state. (Evid. Code, § 452, subd. (d)(1).)

Because the Complaint is part of the Court's record for this case, the Court may take judicial notice of it. (Ibid.) However, "while courts are free to take judicial notice of the existence of each document in a court file, including the truth of results reached, they may not take judicial notice of the truth of hearsay statements in decisions and court files. Courts may not take judicial notice of allegations in affidavits, declarations and probation reports in court records because such matters are reasonably subject to dispute and therefore require formal proof." (Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort (2001) 91 Cal.App.4th 875, 882 [cleaned up].)

Regarding Exhibit 2, Hyundai requests judicial notice as “facts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy” pursuant to Evidence Code section 452, subdivision (h).

The Court disagrees that Hyundai’s website is a source of reasonably indisputable accuracy, and Hyundai has not provided any authority for the proposition that a party’s website is such a source.

Hyundai also argues that the Court may take judicial notice of Exhibit 2 as a document referred to in the Complaint. In support Hyundai cites to *Ingram v. Flippo* (1999) 74 Cal.App.4th 1280, 1285. But in *Ingram*, the documents of which the Court took judicial notice were a letter and press release from the District Attorney, a governmental source of reasonably indisputable accuracy, at least insofar as the fact of and date of publication of these documents. Hyundai has not provided any authority for the Court to take judicial notice of the private website of a non-governmental party to the litigation.

Accordingly, the Court denies judicial notice of Exhibit 2. Notwithstanding, the Court can consider Exhibit 2, which is authenticated by the Declaration of Clayton T. Graham, as evidence.

ANALYSIS

1.

MOTION TO COMPEL ARBITRATION – LEGAL STANDARDS

“[T]he advantages of arbitration include a presumptively less costly, more expeditious manner of resolving disputes. It follows a party to a valid arbitration agreement has a contractual right to have its dispute with another party to the contract resolved quickly and inexpensively.” (*Henry v. Alcove Investment, Inc.* (1991) 233 Cal.App.3d 94, 99–100 [cleaned up].)

Thus, “on petition of a party to an arbitration agreement alleging the

existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists.” (Code Civ. Proc., § 1281.2; see also

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Capital Partners v. Pless (2007) 150 Cal.App.4th 1311, 1320 [the language in section 1281.2 compelling arbitration is mandatory].) The right to compel arbitration exists unless the court finds that the right has been waived by a party's conduct, other grounds exist for revocation of the agreement, or where a pending court action arising out of the same transaction creates the possibility of conflicting rulings on a common issue of law or fact. (Code Civ. Proc., § 1281.2, subds. (a)-(c).)

“On a petition to compel arbitration, the trial court must first determine whether an agreement to arbitrate the controversy exists.

Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence. The party seeking arbitration can meet its initial burden by attaching to the petition a copy of the arbitration agreement purporting to bear the respondent's signature.” (Bannister v. Marinidence Opco, LLC (2021) 64 Cal.App.5th 541, 543-544 [cleaned up].) The party seeking to compel arbitration must also “plead and prove a prior demand for arbitration and a refusal to arbitrate under the agreement.” (Mansouri v. Superior Court (2010) 181 Cal.App.4th 633, 640-641.)

And while the moving party on a motion to compel arbitration “bears the burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence, [a] party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. The trial court sits as the trier of fact, weighing all the affidavits, declarations, and other documentary evidence, and any oral testimony the court may receive at its discretion, to reach a final determination.” (Ruiz v. Moss Bros. Auto Group, Inc. (2014) 232 Cal.App.4th 836, 842 [cleaned up]; see also Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC (2012) 55 Cal.4th 223, 236 [“The party

seeking arbitration bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability"].)

2.

ENFORCEABLE ARBITRATION AGREEMENTS

Hyundai advances the Warranty for the subject vehicle, which includes the following arbitration provision:

BINDING ARBITRATION FOR CALIFORNIA VEHICLES ONLY

PLEASE READ THIS SECTION IN ITS ENTIRETY AS IT
AFFECTS YOUR RIGHTS

THIS SECTION DOES NOT PRECLUDE YOU FROM FIRST
PURSUING ALTERNATIVE DISPUTE RESOLUTION THROUGH BBB AUTO LINE AS DESCRIBED IN
THE "ALTERNATIVE DISPUTE RESOLUTION" PROVISION IN SECTION 3 OF THIS HANDBOOK.

If you purchased or leased your Hyundai vehicle in the State of California, you and we, Hyundai Motor America, each agree that any claim or disputes between us (including between you and any of our affiliated companies) related to or arising out of your vehicle purchase, advertising for the vehicle, use of your vehicle, the performance of the vehicle, any service relating to the vehicle, the vehicle warranty, representations in the warranty, or the duties contemplated under the warranty, including without limitation claims related to false or misleading advertising, unfair competition, breach of contract or warranty, the failure to conform a vehicle to warranty, failure to repurchase or replace your vehicle, or claims for a refund or partial refund of your vehicle's purchase price (excluding personal injury claims), but excluding claims brought under the Magnuson-Moss Warranty Act, shall be resolved by binding arbitration at either your or our election, even if the claim is initially filed in a court of law. If either you or we elect to resolve our dispute via arbitration (as opposed to in a court of law), such binding arbitration shall be administered by and through the American Arbitration Association (AAA) under its Consumer Arbitration Rules.

We will pay all fees for any arbitration except for the initial filing fee of \$200. The arbitration will be held in the city or

county of your residence. To learn more about arbitration, including the applicable rules and how to commence arbitration, please contact:

AAA at www.adr.org; 800-778-7879.

This agreement to arbitrate is intended to be broadly interpreted and to make all disputes and claims between us (including our affiliated companies) relating to or arising out of your vehicle purchase, use or performance of your vehicle, or the vehicle warranty subject to arbitration to the maximum extent permitted by law. The arbitrator (and not a court) shall decide all issues of interpretation, scope, and application of this agreement.

In any arbitration, the arbitrator shall be bound by the terms of this agreement and shall follow the applicable law. The arbitrator shall not have the power to commit manifest errors of law, and any award rendered by the arbitrator that employs a manifest error of law may be vacated or corrected by a court of competent jurisdiction for such error. The arbitrator may only resolve disputes between you and us and may not consolidate claims without the consent of all parties. The arbitrator cannot hear class or representative claims or requests for relief on behalf of others, or issue any award or remedy in arbitration against or on behalf of anyone who is not a named party to the arbitration, as permitted by law. In other words, you and we may bring claims against the other only in your or our individual capacity, and not as a plaintiff or class member in any class or representative action to the maximum extent permitted by law. You and we acknowledge and agree that, to the fullest extent permitted by law, we are each waiving the right to participate as a plaintiff or class member in any purported class action lawsuit, class-wide arbitration, private attorney general action, or any other representative proceeding. If a court or arbitrator decides that any part of this agreement to arbitrate cannot be enforced as to a particular claim for relief or remedy, then that claim or remedy (and only that claim or remedy) must be brought in court and must be stayed pending arbitration of the arbitrable claims and remedies. If a court or arbitrator decides that any part of this agreement cannot be enforced as to a particular request for public injunctive relief, then that request for public injunctive relief (and only that request for public injunctive relief) must be brought in court and must be stayed pending arbitration of the arbitrable remedies. If arbitration is elected by either party, the parties collectively agree that they waive their right to a jury trial.

Notwithstanding the above, either you or we may file a lawsuit in small claims court for any claims that otherwise require binding arbitration, if the small claims court has jurisdiction. In addition, either you or we may invoke any AAA Consumer Arbitration Rules that allow you or we to have a small claims court decide any claims that otherwise require binding arbitration. This agreement evidences a transaction involving interstate commerce and shall be governed by the Federal Arbitration Act, 9 U.S.C. §§ 1-16. Judgment upon any award in arbitration may be entered in any court having jurisdiction.

IF YOU PURCHASED OR LEASED YOUR VEHICLE IN CALIFORNIA, YOUR WARRANTY IS MADE SUBJECT TO THE TERMS OF THIS BINDING ARBITRATION PROVISION. BY USING THE VEHICLE, OR REQUESTING OR ACCEPTING BENEFITS UNDER THIS WARRANTY, INCLUDING HAVING ANY REPAIRS PERFORMED UNDER WARRANTY, YOU AGREE TO BE BOUND BY THESE TERMS. IF YOU DO NOT AGREE WITH THESE TERMS, PLEASE CONTACT US AT WITHIN THIRTY (30) DAYS OF YOUR PURCHASE OR LEASE TO OPT-OUT OF THIS ARBITRATION PROVISION

(Ex.
2 to Graham Decl. at pp. 13-14.)

In opposition, Plaintiff argues that there was no mutual assent to the warranty provision. Rather, the provision is contained within the Owner's Manual and Warranty book placed in the glovebox of every new Hyundai vehicle.

In support, Plaintiff cites to *Norcia v. Samsung Telecommunications America, LLC* (9th Cir. 2017) 845 F.3d 1279 (hereafter *Norcia*). In *Norcia*, the Ninth Circuit, applying California law, determined that the consumer was not bound by an arbitration clause containing an opt-out provision that was included within a warranty. In so holding, the Ninth Circuit explained that while warranty law imposes obligations on the seller flowing from the seller's promises and description of the goods, a warranty does not generally impose obligations on the buyer. (Id. at p. 1288.) Thus, under the general principles that an offeree's silence does not constitute consent to a contract "when the offeree reasonably did not know that an offer had been made," and "an offeree, regardless of apparent manifestation of his consent, is not bound by inconspicuous contractual provisions of which he was unaware, contained in a document whose contractual nature is not obvious," the appellate court found the buyer's failure

to opt out of an arbitration provision buried within a warranty did not make the arbitration provision enforceable against him. (Id. at pp. 1285, 1290.)

But the California Court of Appeal has distinguished *Norcia* on the grounds that it involved a nonwarranty dispute, and therefore its holding has no bearing on whether a consumer could be required to arbitrate warranty claims on the basis of an arbitration provision contained within the warranty booklet. (See *Kostandian v. American Honda Motor Co., Inc.* (2026) 120 Cal.App.5th 872, 883.)

Thus, by being presented with the arbitration agreement in connection with the warranty at issue, and by not timely opting out of it, Plaintiff is deemed to have consented to the terms thereof.[1]

3. UNCONSCIONABILITY

Plaintiff argues that the arbitration agreement is both procedurally and substantively unconscionable.

“Unconscionability is ultimately a question of law for the court.” (*Flores v. Transamerica Homefirst, Inc.* (2001) 93 Cal.App.4th 846, 851.) “However, numerous factual issues may bear on that question.” (*Gutierrez v. Autowest, Inc.* (2003) 114 Cal.App.4th 77, 89.) As such, Respondent must show two elements to establish the unconscionability defense: (1) procedural unconscionability, which focuses on the manner in which the contract was negotiated, and (2) substantive unconscionability, which concerns whether the contract’s terms are unreasonably one-sided. (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 113-115 (hereafter *Armendariz*).)

“The prevailing view is that procedural and substantive unconscionability must both be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability. But they need not be present in the same degree. Essentially a sliding scale is invoked which disregards the regularity of the procedural process of the contract formation, that creates the terms, in proportion to the greater harshness or unreasonableness of the substantive terms themselves. In other

words, the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.”

(Armendariz, supra, 24 Cal.4th at p. 114 [cleaned up].)

a.

PROCEDURAL UNCONSCIONABILITY

Procedural unconscionability examines the “oppression that arises from unequal bargaining power and the surprise to the weaker party that results from hidden terms or the lack of informed choice.” (Ajamian v. CantorCO2e, L.P. (2012) 203 Cal.App.4th 771, 795.) Preprinted forms buried within a volume of documents offered on a “take or leave it basis” evidence a high degree of procedural unconscionability. (See Dougherty v. Roseville Heritage Partners (2020) 47 Cal.App.5th 93, 102-104.) Most consumer contracts are adhesive and therefore present some procedural unconscionability. (Sanchez v. Valencia Holding Co., LLC (2015) 61 Cal.4th 899, 915.) “[A] finding of procedural unconscionability does not mean that a contract will not be enforced, but rather that courts will scrutinize the substantive terms of the contract to ensure they are not manifestly unfair or one-sided.” (Ibid.)

Plaintiff argues the post-sale arbitration agreement is procedurally unconscionable because it is buried within the 50-page Warranty Booklet, it does not require her express, affirmative consent to bind her, and she was not actually aware of it during the opt-out period.

Notwithstanding, Plaintiff was aware of the warranty at the time she purchased the vehicle, and that the warranty booklet was in the “glovebox” of her new vehicle. The arbitration provision was plainly included with those materials and available for Plaintiff to review at any time. Further, Plaintiff had a fair opportunity to opt out of arbitrating warranty disputes entirely.

Thus, the Court does not find any procedural unconscionability.[2]

CONCLUSION

Finding a binding agreement to arbitrate Plaintiff’s warranty claims exists, and finding no procedural

unconscionability, the Court grants Hyundai's motion to compel Plaintiff's warranty claims to arbitration and stays this case pending the outcome of the arbitration proceedings.

The Court will enter Hyundai's proposed order in accordance with this ruling.

Further, the Court vacates the Case Management Conference scheduled for September 23, 2026 and sets a Status Conference re Arbitration for May 19, 2026 at 8:30 a.m. in Department 207. The Court further orders the parties to meet and confer, and file a joint status report regarding the Arbitration no later than 5 court days before the Status Conference.

Further, the Court will enter the proposed Order lodged on July 20, 2026 in conformity with the ruling.

Hyundai shall provide notice of the Court's ruling/Order, and file the notice with a proof of service forthwith.

DATED: August 19, 2026 ____/s/____

Michael
E. Whitaker

Judge
of the Superior Court

[1] Because the Court determines Plaintiff assented to the term of the arbitration agreement by not timely opting out, the Court need not examine Plaintiff's estoppel arguments.

[2] Because the Court does not find any procedural unconscionability, it need not examine substantive unconscionability.